IN THE HIGH COURT OF DELHI AT NEW DELHI

CS(COMM) 188/2025

Orion Retail Limited v Brightwave Systems Private Limited

PLAINT under Order VII Rule 1 of the Code of Civil Procedure, 1908

1. The Plaintiff, Orion Retail Limited, is a retailer. The Defendant, Brightwave Systems Private Limited, supplies warehouse automation systems.

2. By a Statement of Work dated 3 April 2023 (the SOW) the Defendant agreed to supply a warehouse automation system for fees of Rs. 2,10,00,000.

3. By Change Request No. 1 dated 20 October 2023 the due date of Milestone 1 under the SOW was changed to 31 January 2024.

4. The Defendant failed to deliver by that date. The Plaintiff accepted Milestone 1 only on 28 March 2024 after repeated failures.

5. The delay is eight weeks. Under clause 3.1 of the SOW the Plaintiff is entitled to liquidated damages of Rs. 16,80,000.

6. The Plaintiff served a legal notice on 10 March 2024 but the Defendant did not pay.

PRAYER

The Plaintiff therefore prays for:

(a) a decree for Rs. 16,80,000 against the Defendant;

(b) interest at 9% per annum;

(c) costs of the suit.

Dated this 10 April 2025

Advocate for the Plaintiff